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PRIVATE & CONFIDENTIAL — LEGALLY PRIVILEGED

Freedom-to-Operate and Patent-Validity Opinion

Project Zephyr — Helmsman autonomous fleet-orchestration platform

To: Whitfield Carter LLP (attn. James Osei); Penrose Robotics Limited (attn. Dr Aisha Devlin)

From: Dr Alan Foster, Partner / Patent Attorney, Hartington IP

Date: 4 November 2025

Our ref: HIP/AF/PEN-FTO-007

Patents: GB2598447, EP3892511, GB2611203 (granted); EP4123876, PCT/GB2024/050621 (pending)

1. Instructions and scope

We are instructed to advise (a) on the validity of the granted patents in the Helmsman patent family that Penrose Robotics Limited ("Penrose") proposes to license to Wexbourne Retail Group Limited under Project Zephyr, and (b) on the freedom of the licensee to operate the Helmsman platform within the warehouse and fulfilment field in the United Kingdom and the principal EU jurisdictions, having regard to third-party rights of which we are aware. This opinion is given for the purposes of the proposed licence only and is subject to the limitations in section 7.

2. The Licensed Patents

The granted patents are GB2598447 (decentralised traffic management of AMR fleets), EP3892511 (dynamic charging-slot allocation; validated in the UK, Germany, France and the Netherlands) and GB2611203 (predictive congestion avoidance). Two further applications are pending: EP4123876 (multi-fleet task-orchestration using constraint solving) and PCT/GB2024/050621 (adaptive path-planning under variable rack topology), the latter due to enter national phase in Q1 2026.

3. Validity

We have reviewed the prosecution histories and the principal prior art cited during examination. In our opinion the granted claims of GB2598447 and GB2611203 are valid and enforceable, the inventive step over the closest prior art (in particular WO2016/118…/A1 and US2018/03…) being adequately supported. EP3892511 survived a third-party observation during examination directed at the charging-slot scheduling claims; the granted claims are, in our view, more likely than not to be held valid, although we note a residual risk in respect of dependent claim 7, which we would recommend be relied upon with caution.

4. Freedom to operate

Our searches of the principal patent registers identified a small number of third-party rights in the adjacent field of AMR navigation. The most relevant are two granted patents held by a non-practising entity (referred to in our search report as the "Sennheiser-style" cluster), the claims of which are, on our analysis, directed to centralised (rather than decentralised) traffic control and are therefore not infringed by the Helmsman decentralised architecture. We did not identify any blocking right that would prevent the licensee operating the Helmsman platform as described in the draft licence within the warehouse and fulfilment field in the UK,

Germany, France or the Netherlands.

5. Risk assessment and recommendations

We assess the overall freedom-to-operate risk as LOW for the granted decentralised traffic-management and congestion-avoidance functionality, and LOW-TO-MODERATE for the charging-slot allocation functionality (by reason of the dependent-claim point at section 3). We recommend that: (a) the licence include an intellectual-property indemnity from Penrose limited to use within the licensed field (as drafted at clause 7); (b) Penrose continue to prosecute the pending applications to broaden coverage of the orchestration and path-planning functionality; and (c) the parties keep the third-party cluster under periodic review.

6. Effect on the proposed licence

Nothing in our review discloses a matter that should, in our opinion, prevent the parties proceeding with the proposed licence on the terms reviewed. The IP warranties at clause 6 and the indemnity at clause 7 of the draft licence are, in our view, appropriately scoped to the risk profile set out above.

7. Limitations

This opinion is based on searches and registers available to us at the date of this opinion and on the documents provided. Patent searching cannot be exhaustive, and unpublished pending applications may exist that are not yet available to search. This opinion is addressed to the named recipients for the purpose stated and may not be relied upon by any other person without our prior written consent. It is governed by the law of England and Wales.

Dr Alan Foster

Partner / Chartered Patent Attorney, Hartington IP